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Woman in the Ancient Hebrew Cult.

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1. Introduction. Current View of Woman's Relation to the Cult.

THE opinion has found considerable currency that woman, on account of her sex, was disqualified to perform the duties of the religious cult among the Hebrews; that in the absence of males in the family, the cult of the deceased could not be perpetuated. The chief representatives of this view are Stade, Schwally, Benzinger, and Nowack. Benzinger (*Hebräische Archäologie*, p. 140) has given it amplest expression; and, in order to have it clearly before us, I quote his words in full: "Noch an einem anderen Punkt zeigt sich die Inferiorität der Frau deutlich: die Frau war nicht fähig zur Ausübung des Kultus. Die Sitte der Schwagerehe setzt die Anschauung voraus, dass Frau und Töchter nicht im Stande sind, den Kultus des Toten zu pflegen. Aus demselben Grund kam ihnen nur ein sehr beschränktes Erbrecht zu, ebensowenig wurden der Frau nach dem Tod kultische Ehren zu teil. Nur als Ehefrau war ihr eine gewisse Teilnahme am Kulte des Mannes gestattet. Bis auf den heutigen Tag hat sich bei den Juden diese Vorstellung erhalten: die Frauen dürfen dem Gottesdienst in der Synagoge anwohnen, die Mädchen sind davon ausgeschlossen. Nicht minder wird im Islâm die Frau als unfähig zur Kultusübung betrachtet. Dass schon frühe einzelne Frauen als Prophetinnen auftreten, ist eine Ausnahme, welche die Regel bestätigt."

Nowack (*Hebräische Archäologie* i. 344 f., 348) is less sweeping in his statements, but also affirms that the levirate law had for its main object to provide male descent for the dead, because woman was unqualified to participate in the cult; that this disqualification also lay at the basis of the Hebrew laws of inheritance; and that

only the son, or the nearest male, and not the female, was qualified to transmit the cult of the testator.

The expression of this view reaches, it seems to me, the strangest height, when Schwally (*ZATW.* xi. 176 ff.) endeavors to explain the word *וִקָּר*, 'male,' as connected with *קָרָא אֱלֹהִים*, 'to call in cult upon God,' and meaning therefore first 'a cultic person,' then, on the assumption, according to the view in question, that this cultic person can be in all Israelitish and Semitic antiquity only a man, meaning, secondly, 'a male.' This sexual meaning was then, thirdly, transferred from men to animals, and reached the highest point of development in the Arabic and Aramaic in the meaning, fourthly, "das männliche Glied." Leaving out of consideration the assumption as to cult, such a view of an etymological development from a distinct spiritual meaning to the lowest physical will never commend itself as an improvement on the older view represented by Gesenius, *s.v.*

None of the three authorities mentioned seems to speak from independent investigation of the subject of woman's relation to the Hebrew or Semitic cult. All three are evidently dependent upon Stade, and simply follow him.

Stade reaches his conclusion in a peculiar manner. He is dealing with the Hebrew family in pre-prophetic time, and he finds in the customs of mourning evidences of a cult of the dead and indications of ancestor-worship. He concludes from these indications that ancestor-worship was a prime factor in the formation of the ancient Israelitish family. Here he begins to call attention to similarities in the organization of the ancient Greek, Roman, and Indian families, and to draw parallels between them and the Semitic. The ancient Indo-Germanic family was a "Cultgenossenschaft," held together by the common bond of worship of the ancestors of the family, whose altar is the family altar, and whose priest is the father and the lord of the house. This cult explains the most ancient laws of the people. Can similar ancient Hebrew laws find a similar explanation? In answering this question affirmatively Stade proceeds to instance the law of inheritance. This law among the ancient Hebrews, as among the ancient Greeks and Romans, was originally that of agnates. In ancient Israel the son only is the heir, not the daughter. Stade asserts that wherever this law of inheritance is found, the ground for it is that only the son, or the nearest male relative, taking his place as the heir, can perpetuate the cult of the testator (*Geschichte* i. 388-391).

It is important to observe that Stade's conclusion, denying woman her share in the ancient Hebrew cult, is not based upon any direct evidence derived from the Old Testament itself, but upon a remote and supposed analogy which connects a question of cult with that of the law of inheritance, and upon an utter disregard of all phenomena in the Old Testament that may point the other way.

The connection of the law of inheritance with the admission to the cult, and the explanation of the former from this source, are entirely forced and unsatisfactory. That the inheritance in old Israel was restricted to agnates is true enough (Nowack, *Arch.* i. 348 f.); but we may well ask whether there is not a simpler explanation of the fact. The weakness of Stade's position becomes very apparent when, in his attempt to support his view of the dependence of the right to inherit upon admission to the cult, he refers to Gen. 15^{2f.} as the solitary evidence. Now, the ancient custom that in default of a son the slave of the master becomes heir may prove that Abraham had no son, but how it can prove that Eliezer was the last representative of the family cult, save on the assumption of that which Stade endeavors to prove, I cannot see.

But the fact of woman's exclusion from the Hebrew laws of inheritance does not need explanation from her relation to the cult. There is a better way. W. Robertson Smith mentions a similar law among the Arabs. Smith shows that antique Arab society had its basis not in the patriarchal authority, the family, but in the stock or kinship tribe, an organization that has for its object offence and defence, and that the whole law of the old Arabs resolves itself into a law of war, in which blood-feud, blood-wite, and booty are the points on which everything turns. The law of inheritance there follows the law of booty. The tribe owned the property of which the individual had only a usufruct, and which fell to be divided after his death like the spoils of war. The right of inheritance belonged to the active members of the tribe. This explains the relation of woman to the law of inheritance, and is in accordance with the old law of Medina, quoted by Smith, in which women were excluded from inheritance on the principle that "none can be heirs who do not take part in battle, drive booty, and protect property." See W. R. Smith, *Kinship and Marriage*, pp. 33-58, and his note on "Law of Inheritance," p. 263.

Now, it is a well-recognized fact that the affinity in social organization and ancient law is far greater between the Arabs and the Hebrews than between the Semites and the Greeks and Romans. And so woman's exclusion from inheritance finds here, it seems to